

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

FIRST JOINT STATUS REPORT

TO THE HONORABLE COMMISSION:

Pursuant to the Scheduling Order issued by this Honorable Commission on August 6, 2019, the Parties report as follows:

A. Discovery

1. The Parties exchanged both the written requests and the responses as scheduled.
2. The Parties will meet on September 25, 2019 to discuss each Party's objections and try to resolve any dispute thereof.
3. The Parties will be determining whether further discovery is necessary.

B. Mediation and Settlement Negotiations

4. As per the Federal Maritime Commission Rules of Practice and Procedure, §502.64(a)(2), and the Scheduling Order, Toyota contacted the Director of the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADSR).

5. An initial mediation session was held on August 9, 2019. In said session, Toyota extended an initial settlement demand. PRPA has not yet extended a counteroffer. The Parties are engaged in ongoing settlement conversations. A second mediation session will be scheduled by the Parties with the Mediator, Zoraya B. De La Cruz, Esq., as soon as PRPA secures authorization to extend a counter offer to Toyota. Over the course of the last few weeks Toyota and PRPA were working together to compile evidence necessary for PRPA to move forward with securing such authorization. Toyota already produced all evidence of payments which it claims related to the ESF. PRPA is currently reviewing the same.

C. Developments in Related Cases

6. There has not been any major development in the related cases, *i.e. In re Vehicle Carrier Services*, F.M.C. Docket Nos. 16-01, 16-07, 16-10, 16-11; and, *Dantzler, Inc., et. al. v. Puerto Rico Ports Authority* 18-2089 (1st Cir.). The *Dantzler* case has been fully briefed.

An original and five copies of this Joint Motion will be filed with the Office of the Secretary.

WHEREFORE, the Parties respectfully request that this Honorable Commission take notice of the above and deem them in compliance with the discovery schedule.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 24th day of September, 2019.

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CERTIFICATE OF SERVICE

We hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing to the following addresses:

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